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IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

REPLY TO PETITIONER'S RESPONSE TO THIRD VERIFIED PETITION

NOW COMES the Respondent/Counter-Petitioner, HEATHER KIM ATAGAN ("HEATHER"), by and through her attorneys, FITZPATRICK TARARA FAMILY LAW, LLC, as and for her Reply to the Petitioner/Counter-Respondent, JOEL THORARINSON's ("JOEL") RESPONSE TO THIRD VERIFIED PETITION ("RESPONSE"). In support thereof, HEATHER states as follows:

JOEL's RESPONSE the HEATHER's THIRD VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF ("THIRD CONTEMPT PETITION") is improper in form and includes numerous affirmative allegations. In the interest of judicial economy and to avoid further delaying the resolution of these matters, HEATHER will address that same herein as her reply.

1. JOEL's claim that he made "$366,929.00 in payments and transfers to or for the benefit of Respondent."

   a. Upon information and belief, JOEL is referencing Exhibit D and Exhibit E which were provided with a number of JOEL's frivolous filings. HEATHER's responses to the same are incorporated herein as **Response to Exhibit D** and **Response to Exhibit E** respectively.

   b. Summarily, JOEL's Exhibit D fails to demonstrate his compliance with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS requiring JOEL to pay temporary support to HEATHER in the amount of $10,000.00 per month

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beginning May 1, 2025, and the ORDER entered on February 20, 2026, requiring JOEL to become current on the outstanding mortgage balance. By JOEL's own accounting, he has only made payments to HEATHER totaling $44,631.00 since May 1, 2025. If those figures are accurate, JOEL's arrearage **by his own accounting, totals $75,369.00.**

c. Other payments JOEL alleges were "for the benefit" of HEATHER and the minor children include over $200,000.00 paid to "The Balance Retreat", over $8,000.00 paid for JOEL's "eye surgery", another treatment facility costing over $20,000.00 paid from an undisclosed source, $6,985.00 allegedly paid to the parties' minor child on an unknown date from an undisclosed account, and over $18,000.00 reimbursed to JOEL's father for an alleged "loan". No support bank statements were provided to support JOEL's payment of these alleged expenses and these expenses clearly were not for the benefit of the children or HEATHER. See HEATHER's **Response to Exhibit E.**

2. JOEL claims that HEATHER's Chase Accounts ending x9056 and x2573 are "undisclosed" and thus JOEL is somehow no longer required to comply with Court orders.

a. Chase Account x9056 is the checking account associated with HEATHER's business. This account was known to JOEL as transactions between the parties' Joint JP Morgan Account and the Business Checking Account x9056 date as far back as November of 2024.

b. Chase Account x2573 is HEATHER's personal checking account that has existed since 2019 and similarly has transactions with the Joint JP Morgan Account since that date. Again, this is not an unknown account.

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c. **Nonetheless, discovery disputes do NOT obviate the need for JOEL to comply with this Court's orders.**

3. JOEL also states, "that the party who refuses to disclose her finances should not be permitted to seek incarceration of the party who has documented $366,929 in payments while earning $0."

a. If this premise is supported by law, JOEL fails to cite the same.

b. JOEL's alleged payments of $366,929.00 are inaccurate, unsupported by bank statements, and irrelevant as a number of the transfers included in this total were **prior** to the Court's April 30, 2025 and February 20, 2026, Orders JOEL is currently violating.

c. JOEL's claim that he is not earning any income has not been supported by updated discovery. Further, JOEL's failure to obtain employment appears to be an intentional choice to further deplete the marital estate and avoid supporting HEATHER and the minor children. HEATHER filed her MOTION FOR PETITIONER TO SEEK EMPLOYMENT, MAINTAIN A JOB DIARY, AND FOR OTHER RELIEF on February 18, 2026, to address the same.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER KIM ATAGAN, respectfully requests this Honorable Court grant the following relief:

A. Enter an Order granting HEATHER's THIRD VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF and granting the relief requested therein; and

B. Grant such other and further relief as this Honorable Court deems equitable and just.

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Respectfully Submitted,

ANNEMARIE TARARA

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
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(312) 588-9773
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Notice@ftfamilylawyers.com

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VERIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, I, **HEATHER KIM ATAGAN,** being first duly sworn and on oath depose and state that I am the Respondent/Counter-Petitioner in the above-captioned matter; that I have read the foregoing pleading and have knowledge of the contents thereof; and that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters I certify as aforesaid that I verily believe the same to be true.

HEATHER KIM ATAGAN
Respondent/Counter-Petitioner

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
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HEATHER's Response to JOEL's Exhibit D

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Verified Payments from Joel Thorarinson

Date	Amount	Recipient	Method	Category	Description	Response
4/30/2025	$190,627.00	The Balance Retreat	Revolut Wire	Medical	Inpatient psychiatric/addiction treatment	No proof of doctor recommendation or medical necessity.
10/6/2025	$8,835.95	Laser Eye Clinic London	Card x1498	Medical	Eye surgery	No proof of doctor recommendation or medical necessity.
Unknown	$21,100.00	New Waters Recovery	Unknown	Medical	Medical Detox 7 days + incidentals	No proof of payment and/or source of payment of alleged expense.
1/20/2025	$1,905.00	Dr. Rajeev Dhar	Unknown	Medical	Physician Payment	No proof of payment and/or source of payment of alleged expense.
Unknown	$6,985.00	Ariana Thorarinson	Unknown	Child Expenses	Direct support to Ariana	No proof of payment and/or source of payment of alleged expense.
12/31/2025	$18,935.12	Eugene Robert Thorarinson (father)	Unknown	Family Support	Repayment of father's loan for treatment Heather requested	No proof of payment and/or source of payment of alleged expense.

Direct Transfers

Date	Destination	Amount (USD)	Response
11/15/2024	Chase Business Checking 9056	$3,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
11/19/2024	Chase Business Checking 9056	$2,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2/13/2025	Chase Business Checking 9056	$10,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2/27/2025	Chase Business Checking 9056	$20,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
3/5/2025	Chase Business Checking 9056	$25,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
3/5/2025	Chase Heather's Checking 2573	$5,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
5/6/2025	Chase Business Checking 9056	$2,000.00	Transfer to Atagan Music Studios for Heather's business.
6/2/2025	Chase Heather's Checking 2573	$4,000.00	Received.
6/5/2025	Chase Heather's Checking 2573	$2,000.00	Received.
8/12/2025	Chase Heather's Checking 2573	$8,500.00	Received.
8/29/2025	Chase Heather's Checking 2573	$25,000.00	Received.
10/3/2025	Chase Heather's Checking 2573	$3,141.00	Received.
2/3/2026	Chase Heather's Checking 2573	$400.00	
Total		**$110,041.00**	

Category Subtotals

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Category	Subtotal	Response
Child Expenses	$ 6,985.00	No proof of payment and/or source of payment of alleged expense.
Family Support	$ 18,935.12	No proof of payment and/or source of payment of alleged expense.
Medical	$ 222,467.95	No proof of doctor recommendation or medical necessity.
Direct Transfer	$ 110,041.00	Total Since 4/30/25 Agreed Order = $44,641.00
Verified Payments Subtotal	$ 248,388.07	Not agreed. Missing proof of payment and/or verification of doctor recommended treatment.
Direct Transfer Subtotal	$ 110,041.00	Total Since 4/30/25 Agreed Order = $44,641.00
GRAND TOTAL	**$ 358,429.07**	

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HEATHER's Response to JOEL's Exhibit E

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Transfer Detail

Date	Destination	Amount (USD)	Response
11/15/2024	Chase Business Checking 9056	$3,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
11/19/2024	Chase Business Checking 9056	$2,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2/13/2025	Chase Business Checking 9056	$10,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2/27/2025	Chase Business Checking 9056	$20,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
3/5/2025	Chase Business Checking 9056	$25,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
3/5/2025	Chase Heather's Checking 2573	$5,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
5/6/2025	Chase Business Checking 9056	$2,000.00	Transfer to Atagan Music Studios for Heather's business.
6/2/2025	Chase Heather's Checking 2573	$4,000.00	Received.
6/5/2025	Chase Heather's Checking 2573	$2,000.00	Received.
8/12/2025	Chase Heather's Checking 2573	$8,500.00	Received.
8/29/2025	Chase Heather's Checking 2573	$25,000.00	Received.
10/3/2025	Chase Heather's Checking 2573	$3,141.00	Received.
2/3/2026	Chase Heather's Checking 2573	$400.00	
Total		**$110,041.00**	

Account Summary

Destination Account	Transfer Count	Total	Response
Chase Heather's Checking x2573	7	$48,041.00	Total Since 4/30/25 = $42,641.00
Chase Business Checking x9056	6	$62,000.00	Total Since 4/30/25 = $2,000.00

Monthly Breakdown

Month	Transfers	Total (USD)	Response
2024-11	2	$5,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2025-02	2	$30,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2025-03	2	$30,000.00	Prior to Entry of Temporary Support Order on 4/30/25.
2025-05	1	$2,000.00	Per 4/30/25 Agreed Order, Temporary Support owed to Heather = $10,000
2025-06	2	$6,000.00	Per 4/30/25 Agreed Order, Temporary Support owed to Heather = $10,000
2025-08	2	$33,500.00	Received.
2025-10	1	$3,141.00	Per 4/30/25 Agreed Order, Temporary Support owed to Heather = $10,000
2026-02	1	$400.00	Per 4/30/25 Agreed Order, Temporary Support owed to Heather = $10,000
Total	13	$110,041.00	